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Case Number: 25STCV20165 Hearing Date: August 4, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/04/2026

CASE NUMBER: 25STCV20165

CASE NAME: BRIGITT GOLDMAN vs NORDSTROM, INC.

MOVING PARTY: Defendant NORDSTROM, INC.

OPPOSING PARTY: Plaintiff Brigitt Goldman

PROCEEDING: Motion to compel arbitration

RULING SUMMARY: Defendant Nordstrom, Inc.'s Motion to Compel Arbitration and

Motion to Stay are granted. The Court

sets an Order to Show Cause re Status of Arbitration for _____,

2026, at 8:30AM.

Background

On July 8, 2025, Brigitt Goldman

("Plaintiff") filed a Complaint against Nordstrom, Inc. ("Defendant") and Does

1 to 20. ٢٢

On August 8, 2025, Defendant

filed a Motion for Stay of Proceedings and a Motion to Compel

Arbitration, which was denied without prejudice. Plaintiff was granted

leave to amend the Complaint to address the deficiencies regarding her sexual harassment claim.

The operative pleading is the

First Amended Complaint ("FAC"), filed March 6, 2026, which alleges:

(1) Discrimination in Violation of

FEHA;

Failure to Prevent

Discrimination (FEHA); (3) Retaliation in Violation of FEHA; (4) Harassment

in Violation of FEHA; (5) Failure to Prevent Harassment in

Violation (FEHA); (6) Sexual Harassment (FEHA); (7) Labor Code § 98.6; (8) Labor Code § 1102.5; (9) Labor

Code § 6310; (10) Failure to Engage in a Good Faith Interactive Process;

(11) Failure to Provide Reasonable Accommodation; (12) Wrongful

Termination/Constructive Termination in Violation of Public Policy; (13) Labor Code § 233; and (14) California Family Rights Act.

On April 14, 2026, Defendant

filed its renewed Motion for Stay of Proceedings and Motion to Compel

Arbitration.

On April 16, 2026, Defendant

filed its Demurrer with Motion to Strike the FAC. After a June 8, 2026, hearing on Defendant's

Demurrer, the Court (1) ruled that Defendant's Demurrer to Fourth Cause of

Action (Harassment in Violation of FEHA), and the Sixth Cause of Action (Sexual

Harassment in Violation of FEHA) were sustained without leave to amend; (2)

ruled that Defendant's Motion to Strike was denied; and (3) set a hearing for

Defendant's Motion for Stay of Proceedings and Motion to Compel Arbitration for

August 4, 2026.

On May 26, 2026, Plaintiff filed

her Opposition. On June 1, 2026,

Defendant filed its Reply.

LEGAL STANDARD

California law incorporates many of the basic

policy objectives contained in the Federal Arbitration Act, including

a presumption in favor of arbitrability. (*Engalla v. Permanente Medical*

Group, Inc. (1997) 15 Cal.4th 951, 971-72.) Section 1281 of the Code of Civil Procedure permits a

party to file a motion for an order compelling the parties to arbitrate a

controversy. The Court must order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for the revocation of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. This subdivision shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc. § 1281.2.)

Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. (California Correctional Peace Officers Assn. v. State (2006) 142 Cal.App.4th 198, 205.) The Court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute. (Ibid., Cal. Code Civ. Proc. §1281.2 [“...unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement”].) Unless the parties clearly and unmistakably provide otherwise, the question of whether the parties agreed to arbitrate is to be decided by the court, not the arbitrator. (AT&T Technologies v. Communications Workers (1986) 475 U.S. 643, 649.)

The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. (Engineers & Architects Association v. Community Development Department (1994) 30 Cal.App.4th 644, 653.) There is no public policy favoring arbitration of disputes which the parties have not agreed to

arbitrate. (Ibid.)

The party seeking to enforce the arbitration agreement bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) The trial court first decides whether an enforceable arbitration agreement exists between the parties and then determine whether the plaintiff's claims are covered by the agreement. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.)

The party opposing the petition to compel arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (Giuliano v. Inland Empire Personnel, Inc., supra, at 1284.) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (Id.)

DISCUSSION

The remaining causes of action in the FAC are (1) Discrimination in Violation of FEHA; Failure to Prevent Discrimination (FEHA); (3) Retaliation in Violation of FEHA; (4) Failure to Prevent Harassment in Violation (FEHA); (5) Labor Code § 98.6; (6) Labor Code § 1102.5; (7) Labor Code § 6310; (8) Failure to Engage in a Good Faith Interactive Process; (9) Failure to Provide Reasonable Accommodation; (10) Wrongful Termination/Constructive Termination in Violation of Public Policy; (11) Labor Code § 233; and (12) California Family Rights Act. Plaintiff's claims regarding sexual harassment are no longer part of the operative pleading as a result of the Court's ruling on Defendant's Demurrer. Accordingly, Plaintiff's arguments based on the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act, 9 U.S.C. §§ 401–402 ("EFAA") are no longer applicable or persuasive.

A. Moving

Defendants have shown the existence of an arbitration agreement.

Under both the Federal Arbitration Act ("FAA") and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or

equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc. § 1281.2.) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.)

“With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court. (Condee v. Longwood Mgt. Corp. (2001) 88 Cal.App.4th 215, 218; Cal. Rules of Court, Rule 3.1330 [“A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference”].)

Once such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges. (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160; Condee, supra, 88 Cal.App.4th at 219.) However, if the existence of the agreement is challenged, “petitioner bears the burden of proving [the arbitration agreement's] existence by a preponderance of the evidence” (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413; see Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1058-1060.)

Here, Defendant presents that a valid written arbitration agreement exists as Plaintiff and non-moving defendants signed the 2021 Dispute Resolution Agreement (“DRA”); the DRAs are updated periodically with copies sent to the employees on the intranet, work and personal emails, and the workday system. (Decl. Justin Fischbeck (“Fischbeck”) ¶¶ 16-17, 22, 28.) The DRA was updated in 2022, 2024, and 2025. (Ibid.) The 2025 DRA, the operative DRA provides: “You knowingly accept and

agree to the Nordstrom Dispute Resolution Agreement by continuing your employment with Nordstrom after receiving the Dispute Resolution Program,” on the first page, and, “You knowingly accept and agree to the Nordstrom dispute resolution agreement by continuing your employment with Nordstrom for five (5) days after you receive this agreement. Updates to the Dispute Resolution Agreement were also communicated on 12/19/24 and 1/6/25” on the last page. (Id., Exh. D.) The arbitration agreement is seven pages long, with each section describing specific parts of arbitration.

Defendant has shown that a signed arbitration agreement existed between the parties in 2021. Defendant directs the Court and the parties to *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 384 (“Harris”) which discusses implied agreements, including when the employee's continued employment constitutes her acceptance of an agreement proposed by her employer.

Accordingly, Defendant has met its initial burden to show that an arbitration agreement between the parties exists, and the burden shifted to the opposing parties.

Plaintiff

argues that Fischbeck's declaration provides no admissible evidence that Plaintiff received or even read the new agreement as there is no signed acknowledgment, no certified email-open record, and no testimony from anyone with personal knowledge that Plaintiff was ever shown or asked to review the 2025 DRA. Further, Plaintiff argues that Defendant cannot fall back on the 2021 DRA as it has a carve-out for sexual harassment.

Plaintiff

does not address *Harris*, but argues that under *Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 109 (persuasive authority) and *Mendoza v. Trans Valley Transp.* (2022) 75 Cal.App.5th 748, 776–81, an employer needs to show that the employee received reasonable advance notice of the change and continued to work past the deadline. This argument fails because courts have held that employers may unilaterally modify arbitration agreements. (See, e.g., *Harris*, supra, 248 Cal.App.4th at 390; *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1474; see also *Asmus v. Pac. Bell* (2000) 23 Cal.4th 1, 11 [“an employer may terminate or modify a contract with no fixed duration period after a reasonable time period, if it provides employees with reasonable notice, and the modification does not

interfere with vested employee benefits.”].)

Next, Plaintiff’s

argument regarding her election to litigate her claims in court under the 2025 DRA’s carve out and the EAA is no longer applicable. (See Opp. 13:19-20; see also above discussion of sexual harassment claims.)

Further,

Plaintiff does not dispute her electronic signature or continued employment with Defendant.

As

presented, there is a valid arbitration agreement between the parties.

B.

The Arbitration Agreement is Subject to
the FAA

As a threshold matter, the Court

must determine which body of law – the FAA or the California Arbitration Act (Code Civ. Proc., § 1280 et seq.) (“CAA”) – applies to the issues presented here as the two statutory schemes apply different standards and presumptions. The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause: “Federal law in the terms of the Arbitration Act governs . . . [arbitrability] in either state or federal court.” (Southland Corp v. Keating, (1984) 465 U.S. 1, 12; Preston v. Ferrer, (2008) 552 U.S. 346, 353. See also Muller v. Roy Miller Freight Lines, LLC (2019) 34 Cal.App.5th 1056, 1062 [FAA preempts any state law rule that “stand[s] as an obstacle to the accomplishment of the FAA’s objectives”].))

The arbitration agreement states, in

relevant part: “This Dispute Resolution Agreement (“Agreement”) is governed by the Federal Arbitration Act, 9 U.S.C. § 1, et seq., and evidences a transaction involving commerce. Except as provided otherwise, this Agreement applies mutually to any legal disputes arising out of or related to your application for employment with Nordstrom, your employment with Nordstrom, or the termination of your employment with Nordstrom (“Covered Disputes”).” (Decl. Fischbeck at Exh. D, p. 3.)

Accordingly, the parties have agreed that this Motion to Compel Arbitration is governed by the FAA.

C.

Plaintiff has not met her burden to show unconscionability

The doctrine of unconscionability refers to “an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party.” (Sonic-Calabasas A, Inc. v. Moreno, (2013) 57 Cal.4th 1109, 1133.) It consists of both procedural and substantive components - “the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (Ibid.)

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Both substantial and procedural unconscionability must be present to invalidate an arbitration agreement; however, they do not need to be present in the same degree. (Armendariz v. Found Health Psychcare Services, Inc., (2000) 24 Cal.4th 83, 114; Parada v. Superior Court (2009) 176 Cal.App.4th 1554, 1570.) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other words, the more substantively unconscionable the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Armendariz, supra, (2000) 24 Cal.4th 83 at 114.)

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“The party resisting arbitration bears the burden of proving unconscionability.” (Pinnacle Museum Tower Ass’n v. Pinnacle Market Development (US), LLC, (2012) 55 Cal.4th 223, 247.)

Plaintiff argues that the 2025 DRA is unconscionable due to: (1) the take-it-or-leave-it basis as a condition of employment, (2) the unilateral update mechanism, and (3) broad arbitrator-delegation

language that purports to commit even questions of validity and unconscionability to the arbitrator.

The
Court has discussed the unilateral update issue above.

Regarding Plaintiff's assertion that the agreement is unilateral, a contract of adhesion is only sufficient to establish some degree of procedural unconscionability. (See *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915.) "By itself, an adhesion contract may present a low or modest degree of procedural unconscionability, but that can 'rise[] to a moderate level' when the party drafting the agreement fails to provide a copy of the applicable arbitration rules." (*Nelson v. Dual Diagnosis Treatment Center, Inc.* (2022) 77 Cal.App.5th 643, 660 [internal citations omitted].)

Plaintiff's argument regarding "broad arbitrator-delegation language" does not provide the Court with enough information to determine the issue. Specifically, the 2025 DRA is seven pages long and it is unclear which language Plaintiff finds objectionable. The Court identifies the following wording in the 2025 DRA that concerns unconscionability:

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"In addition, disputes relating to the validity, applicability, enforceability, unconscionability or waiver of this Agreement, including but not limited to any claim that all or any part of this Agreement is void or voidable, are Covered Disputes and shall be decided by the arbitrator. However, as stated in the Class Action Waiver, Collective Action Waiver, and Representative Action Waiver provisions below, any disputes about the validity, applicability, enforceability, unconscionability or waiver of the Class Action Waiver, Collective Action Waiver, and/or Representative Action Waiver are not Covered Disputes and shall be decided by a court of competent jurisdiction and not the arbitrator." (Decl. Fischbeck at Exh. D, p. 3.)

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"The Class Action Waiver, Collective Action Waiver, and Representative Action Waiver shall be severable in any case in which the dispute is filed only as an individual action and severance is necessary to ensure that the individual action proceeds in arbitration. Regardless of anything else in this Agreement or any applicable rules that may

apply by virtue of this Agreement, any claim that all or part of the Class Action Waiver, Collective Action Waiver, and/or Representative Action Waiver including, but not limited to any claim that all or part of the Class Action Waiver, Collective Action Waiver, and/or Representative Action Waiver is invalid, unenforceable, unconscionable, void or voidable, must be determined only by a court of competent jurisdiction and not by an arbitrator." (Id. at p.6.)

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"Subject to the severability clauses in the Class Action Waiver, Collective Action Waiver, and Representative Acton Waiver provisions above, if any provision of this Agreement is finally adjudged to be invalid, unenforceable, unconscionable, void or voidable, in whole or in part, such adjudication will not affect the validity of the remainder of the Agreement, and all remaining provisions will remain in full force and effect. Each provision of this Agreement, and each portion of each provision, must be enforced to the fullest extent allowed by law." (Id. at p. 7.)

If the language with which Plaintiff takes issue is that on page three, the concern appears moot as the parties have brought disputes regarding the validity, applicability, enforceability, and unconscionability to the Court for determination. And if that provision were problematic, it is severable from the DRA.

Plaintiff has not met her burden to show that the arbitration agreement is unconscionable.

Defendant's Motion to Compel Arbitration is granted.

D.

The Motion to Stay is dependent on the Motion to Compel Arbitration

Both parties agree that the Motion to Stay rests entirely on a determination of the Motion to Compel Arbitration. (See Mtn. to Stay; Mtn. to Compel Opp. at Section C.)

As the Court has granted the Motion to Compel, the Motion to Stay is granted.

Conclusion

Defendant Nordstrom, Inc.'s

Motion to Compel Arbitration and Motion to Stay are granted. The Court sets an Order to Show Cause re Status of Arbitration for _____, 2026, at 8:30AM.

Date: 08/04/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court